

A

M E A S U R E

PASSED BY

The National Assembly of the Church of England

To make provision for the Powers, Duties and
Constitution of Diocesan Boards of Finance.

[22nd December 1925.]

1.—(1) Subject to the provisions of this Measure, the Diocesan Conference of every diocese shall proceed to constitute for such diocese a Diocesan Board of Finance conforming with the provisions of this Measure. Diocesan
Boards of
Finance.

(2) Subject to the provisions of this Measure, every Diocesan Board of Finance shall be registered as a Company under the Companies Acts, 1908 to 1917, with a Memorandum and Articles of Association containing provisions to the following effect, that is to say :—

- (a) empowering the Company to hold real and personal property for purposes connected with the Church of England;
- (b) empowering the Company to perform, work and to transact business in connection with the Church of England and the diocese concerned and to act as a committee of the Diocesan Conference of such diocese;
- (c) conferring such further powers on the Company as the Diocesan Conference of the diocese concerned may think necessary or expedient in view of the requirements of the diocese;
- (d) providing that the Bishop of the diocese concerned shall *ex officio* be a member of the Company entitled to vote at meetings of the

Company, and that the other members of the Company entitled to vote at meetings of the Company shall not exceed a specified number, not less than three-fourths of whom shall be elected by the Diocesan Conference of the diocese concerned (or, if the Memorandum and Articles of Association so provide or allow, wholly or in part by the Ruri-decanal Conferences of the diocese), and the remainder of whom shall be elected, nominated or co-opted in such manner as the Memorandum and Articles of Association may provide or allow, but so that—

(i) not less than two-thirds of the members of the Company elected by the Diocesan Conference or the Ruri-decanal Conferences as the case may be shall be members of the Diocesan Conference; and

(ii) a majority of the members of the Company shall be laymen.

Adoption
of existing
bodies as
Diocesan
Boards of
Finance.

2.—(1) Where in any diocese there is established an existing Board of Finance, or there being no existing Board of Finance there is a Diocesan Trust, or any other body, which Board, Trust or other body in the opinion of the Diocesan Conference of such diocese, regard being had to such modifications (if any) as have been introduced into the constitution of such Board, Trust or other body in view of the provisions of this Measure, is constituted and empowered in all material respects in the manner laid down in section one of this Measure, the Diocesan Conference may, with the consent of the Bishop and of the body affected, declare the same to be and the same shall thenceforth be the Diocesan Board of Finance for the diocese, and shall (subject to the consent of the Board of Trade) at all times adopt as part of its title the words "Board of Finance."

(2) Provided always that the power conferred by this section upon Diocesan Conferences shall not be exercised so as to cause the existence of more than one Diocesan Board of Finance in one diocese, and shall not be exercised in respect of any body other than a body corporate, and any existing Board of Finance or Diocesan Trust which is not a body corporate may, notwithstanding

anything contained in any trust-deed or other instrument, become, with a view to the exercise of the said power, incorporated as a company under the Companies Acts, 1908 to 1917, and transfer its property to such company subject to the trusts (if any) affecting the same.

3. A Diocesan Board of Finance for any diocese constituted under this Measure shall in the exercise of its powers and duties comply with such directions as may from time to time be given to the Board by the Diocesan Conference.

Exercise of powers, &c., by Diocesan Boards of Finance.

4.—(1) Where in any diocese there is established an existing Board of Finance or a Diocesan Trust, and such existing Board of Finance or Diocesan Trust does not become the Board of Finance for such diocese under this Measure, the Diocesan Conference shall in the case of an existing Board of Finance, and may in the case of a Diocesan Trust, provide for the transfer of the property held by such existing Board or the whole or part of the property held by such Diocesan Trust to the Diocesan Board of Finance constituted under this Measure, and the existing Board or the Diocesan Trust, as the case may be, shall comply with any directions of the Diocesan Conference in connection with such transfer.

Transfer of property to Diocesan Boards of Finance.

(2) Every transfer of property under the provisions of this clause shall be effected in such manner as having regard to the nature of the property is required by law to effect the vesting of the same in the Diocesan Board of Finance constituted under this Measure, and such Diocesan Board of Finance shall hold all property transferred to it hereunder subject to all the trusts affecting the same.

5. In this Measure—

Interpretation.

- (a) the expression "existing Board of Finance" means the body which has been recognised by the Bishop as the Board of Finance of the diocese;
- (b) the expression "Diocesan Trust" means in relation to any diocese any body holding property upon trust for diocesan or parochial purposes and recognised by the Bishop as a Diocesan Trust but not as an existing Board of Finance;

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of Finance Measure, 1925.

- (c) The expression "Ruri-decanal Conference" means an assembly of clergy and laity recognised by the Bishop as a Ruri-decanal Conference, and containing lay representatives elected in accordance with the Constitution.

Short title.

6. This Measure may be cited as the *Diocesan Boards of Finance Measure, 1925.*

Printed by PERCY LUND, HUMPHRIES & CO. LTD.

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